

1.

CASE #	CASE NAME	HEARING NAME
CVPS2504410	GALARZA-TOLEDO VS FARMWORKER INSTITUTE OF EDUCATION AND LEADERSHIP DEVELOPMENT	MOTION TO MODIFY AND/OR QUASH SUBPOENAS FOR EMPLOYMENT RECORDS BY ADONIS GALARZA-TOLEDO

Tentative Ruling: Upon the filing of a motion, the court can order a subpoena be quashed or modified. (Code Civ. Proc., §§ 1985.3, 1985.6, 1987.1.) A motion to quash must be served on the witness and deposition officer at least five days before the date set for production. (*Id.* at §§ 1985.3(g), 1985.6(f).) Even so, the time limit is not jurisdictional as a court can grant a motion to quash even after the date set for production. (*Slagle v. Superior Court* (1989) 211 Cal.App.3d 1309, 1313.) There is no meet and confer requirements for a motion to quash as specified under sections 1985.3, 1985.6 and 1987.1.

As stated by the California Supreme Court: “The party asserting a privacy right must establish a legally protected privacy interest, an objectively reasonable expectation of privacy in the given circumstances, and a threatened intrusion that is serious. [Citations.] The party seeking information may raise in response whatever legitimate and important countervailing interests disclosure serves, while the party seeking protection may identify feasible alternatives that serve the same interests or protective measures that would diminish the loss of privacy. A court must then balance these competing considerations.” (*Williams v. Superior Court* (2017) 3 Cal.5th 531, 552.) There is no compelling interest or need requirement based on *Williams*, in every case, but rather, the court is to consider the type of privacy, the seriousness of invasion, and the availability of alternatives and protective measures. (*Id.* at 556-559.) Discovery will not be ordered if the information sought is available from other sources or through less intrusive means. (*Allen v. Superior Court* (1984) 151 Cal.App.3d 447, 449 (applying to third party privacy rights).)

Employment records are protected by the right of privacy. (*Board of Trustees of Leland Stanford Jr. Univ. v. Superior Court* (1981) 119 Cal.App.3d 516, 528-530 (disapproved on other grounds in *Williams v. Superior Court* (2017) 3 Cal.5th 531, 557).) Plaintiff is not challenging request no. 1 which requests his payroll and wage records. He is challenging his entire personnel record and separation documents. Defendant merely argues that Plaintiff has asserted emotional distress and the personnel records are needed, and he has waived any privacy. General pain and suffering does not place the mental condition at issue. (*Davis v. Superior Court* (1992) 7 Cal.App.4th 1008, 1016.) Defendant has failed to show the relevance of obtaining the entirety of Plaintiff’s personnel files, without any limitation.

As for sanctions, the court may, in its discretion, order the losing party to pay sanctions incurred on the motion if the motion was made or opposed in bad faith, or without substantial justification. (Code Civ. Proc. § 1987.2(a).) Here, sanctions are appropriate as Defendant failed to give justification for providing the entirety of the personnel files. Plaintiff’s request of \$5,100 (\$850 x 6 hours) is excessive.

Motion to Quash and/or Modify Defendant's Subpoenas GRANTED.

Request for Sanctions GRANTED.

Sanctions awarded in the amount of \$2,975 (\$850 x 3.5 hours) to be paid to Plaintiff's attorney within 30 days.

Trial Setting Conference confirmed for February 25, 2027.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2507287	MANAVIE VS EXEL INC.	MOTION FOR PREFERENTIAL TRIAL SETTING BY ARLETA L. MANAVIE, MICHAEL A. MANAVIE

Tentative Ruling: C.C.P. § 372(a)(1) provides that a person who lacks legal capacity to make decisions shall appear either by a GAL appointed by the court in which the action is pending. On July 22, 2026, Plaintiffs obtained appointment of a GAL for Arleta on representations that she lacks the capacity to adequately understand these proceedings and protect her interests. Defendants argue the motion is procedurally improper since it is brought by Arleta, not by her GAL.

Defendants are correct that § 372(a)(1) uses mandatory language, the incapacitated party *shall* appear through her GAL. A motion caption reading Plaintiff Arleta L. Manavie's Notice of Motion rather than Michael A. Manavie, as Guardian ad Litem for Arleta L. Manavie, moves... is a form irregularity that the statute's text supports objecting to. But Defendants cite no authority which treats such a caption defect as jurisdictional or as grounds to deny relief on the merits when the GAL is on the record, counsel of record represents both plaintiffs, and the GAL supports the motion.

C.C.P. § 36(a) provides that a party who is over 70 years of age may petition the court for preference, "which the court shall grant if the court makes both of the following findings: (1) The party has a substantial interest in the action as a whole. (2) The health of the party is such that a preference is necessary to prevent prejudicing the party's interest in the litigation." (C.C.P. § 36(a)(1)-(2).) Code of Civil Procedure section 36(c)(1) requires that a party filing a motion for preference support it with "a declaration of the moving party that all essential parties have been served with process or have appeared." Moreover, C.C.P. § 36(d) provides that the court may, in its discretion, grant a motion for preference "accompanied by clear and convincing medical documentation that concludes that one of the parties suffers from an illness or condition raising substantial medical doubt of survival of that party beyond six months, and that satisfies the court that the interests of justice will be served by granting the preference."

Where a party meets the requisite standard for calendar preference based on the party's health and status as more than 70 years of age, preference must be granted; the court cannot balance conflicting interests. (*Fox v. Sup. Ct.* (2018) 21 Cal.App.5th 529.) Notably, the requisite showing under § 36(a) may be made through an attorney affidavit "based upon information and belief as to the medical diagnosis and prognosis." (C.C.P. § 36.5; see also *Fox, supra*, 21 Cal.App.5th at 534 [no doctor's declaration is required